

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #
Date of filing:

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MAME DIARRA SYLLA,

Plaintiff designates Kings
County as the place of trial

Plaintiff,

Basis of the venue is the Locus
of Occurrence

-against-

THE CITY OF NEW YORK, POLICE OFFICER
DANIEL INGBER and JOHN DOES-Police Officers as
yet unidentified,

SUMMONS

Plaintiff resides at
728 Leonard Street, Apt 2R
Brooklyn, New York 11222

Defendants.

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County of Kings

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

POLICE OFFICER DANIEL INGBER
Tax ID # 940283
c/o New York City Police Department- 75th
Precinct
1000 Sutter Avenue
Brooklyn, New York 11208

Dated: Brooklyn, New York
January 21, 2021

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
MAME DIARRA SYLLA,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
DANIEL INGBER and JOHN DOES-Police Officers as
yet unidentified,

Defendants.

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Plaintiff, by her attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF MAME DIARRA SYLLA**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on April 11, 2020, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H hearing of plaintiff was held on July 14, 2020.

6. That on February 13, 2020, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER DANIEL INGBER and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

7. That on February 13, 2020, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MAME DIARRA SYLLA, was lawfully present at or about the premises 735 Lincoln Avenue, in the County of Kings, City and State of New York.

8. That on February 13, 2020, and at all times hereinafter mentioned and upon information and belief, at the aforementioned location, the plaintiff, MAME DIARRA SYLLA, was approached and as falsely arrested by the defendants, POLICE OFFICER DANIEL INGBER and JOHN DOES-Police Officers as yet unidentified. The plaintiff was taken to the 75th Precinct, where she was held until the following day, on February 14, 2020 and then transferred to Kings County Central Booking, where she was arraigned and then released on her own recognizance on said date.

9. That on February 13, 2020, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MAME DIARRA SYLLA, was falsely arrested by defendants, JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

10. That on February 13, 2020, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

11. That on February 13, 2020, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER DANIEL INGBER and JOHN DOES-Police Officers as yet unidentified, who falsely arrested the plaintiff, MAME DIARRA SYLLA, were acting within the scope of their employment with the defendant, THE CITY OF NEW

YORK.

12. That on February 13, 2020, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

13. That as a result of the aforesaid false arrest and confinement, plaintiff, MAME DIARRA SYLLA, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

14. By the reason of the foregoing, the plaintiff, MAME DIARRA SYLLA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF MAME DIARRA SYLLA**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER DANIEL INGBER and JOHN DOES-Police Officers as yet unidentified, who violated the civil rights of the plaintiff, MAME DIARRA SYLLA.

17. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER DANIEL INGBER and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

18. By the reason of the foregoing, the plaintiff, MAME DIARRA SYLLA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF MAME DIARRA SYLLA**

19. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "18" inclusive with the same force and effect as if more fully set forth at length herein.

20. That on February 13, 2020, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER DANIEL INGBER and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

21. That the defendants, POLICE OFFICER DANIEL INGBER and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against her will and said confinement was not privileged.

22. By the reason of the foregoing, the plaintiff, MAME DIARRA SYLLA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS ON BEHALF OF MAME DIARRA SYLLA**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER DANIEL INGBER and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

25. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, MAME DIARRA SYLLA.

26. That as a result of said intentional and negligent acts, the plaintiff, MAME DIARRA SYLLA, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

27. By reason of the foregoing, the plaintiff, MAME DIARRA SYLLA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF MAME DIARRA SYLLA**

28. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "27" inclusive with the same force and effect as if more fully set forth at length herein.

29. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff.

30. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER DANIEL INGBER and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

31. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

32. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER DANIEL INGBER and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

33. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER DANIEL INGBER and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

34. As a direct and proximate result of this unlawful conduct, the plaintiff, MAME DIARRA SYLLA, sustained the damages hereinbefore alleged.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF MAME DIARRA SYLLA**

35. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "34" inclusive with the same force and effect as if more fully set forth at length herein.

36. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

37. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER DANIEL INGBER and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

38. By the reason of the foregoing, the plaintiff, MAME DIARRA SYLLA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, MAME DIARRA SYLLA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, MAME DIARRA SYLLA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, MAME DIARRA SYLLA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts

on the **Third** Cause of Action; plaintiff, MAME DIARRA SYLLA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, MAME DIARRA SYLLA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, MAME DIARRA SYLLA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
January 21, 2021

Yours, etc.,



ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
MAME DIARRA SYLLA
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 20MS02-13

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

MAME DIARRA SYLLA, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


MAME DIARRA SYLLA

Sworn to before me this 21st
day of January 2021


NOTARY PUBLIC

SUZANNE VALENTINE
Commissioner of Deeds, City of New York
No. 4-10061
Certificate Filed in Queens County
Term Expires October 1, 2023